



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

APR - 1 1988

DOT-E 9918

1. Hughes Aircraft Company, Tucson, Arizona, is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations to offer for transportation packages prescribed herein of Class A explosives for transportation in commerce, subject to the limitations and special requirements specified herein. This exemption authorizes the shipment of rocket ammunition with explosive projectile, class A explosive, and provides no relief from any regulation other than as specifically stated.

2. BASIS. This exemption is based on Hughes Aircraft Company's application dated January 28, 1988, submitted in accordance with 49 CFR 107.103 and the public proceeding thereon.

3. HAZARDOUS MATERIALS (Descriptor and class). Rocket ammunition with explosive projectile, identified as tow missiles, classed as Class A explosive.

4. PROPER SHIPPING NAME (49 CFR 172.101). Rocket ammunition with explosive projectile.

5. REGULATION AFFECTED. 49 CFR 172.101, Column 6(b); 173.57(a), 175.30.

6. MODES OF TRANSPORTATION AUTHORIZED. Cargo-aircraft only.

7. SAFETY CONTROL MEASURES. Packaging is as prescribed in the Department of Defense (DOD) drawings numbered 13218444 dated December 19, 1986, on file with the Office of Hazardous Materials Transportation (OHMT).

8. SPECIAL PROVISIONS.

a. The following information must be provided in writing, to OHMT, prior to each shipment:

- i. Name of the air carrier;
- ii. The type, quantity and gross weight of the tow missiles in the shipment;
- iii. Identify the origin and destination points including fuel stops involved in the shipment;
- iv. Dates and times of scheduled departure from origination point and estimate arrival at fuel stops and destination point; and
- v. Copy of the approvals issued by the airport managers for each U.S. airport involved in the flight.

b. Air carriers must be identified to OHMT as required in paragraph 8(a)(i) and approved in writing by OHMT prior to each shipment.

- c. The carrier must conform to the requirements of 49 CFR 175.320(b).
- d. A copy of the air bill must be forwarded to the Office of Hazardous Materials Transportation, Exemptions Branch within 10 days after completion of each shipment made under this exemption.
- e. A copy of this exemption must be carried aboard each aircraft used to transport packages covered by this exemption.
- f. This exemption does not grant authority to use foreign controlled airspace or airports outside the United States.
- g. Any fuzes in the ammunition must be of the safe and arm type and be in the "safe" position during transportation.

9. REPORTING REQUIREMENTS. Any incident involving loss of contents of the package or damage to the packaging must be reported to the OHMT as soon as practicable.

10. EXPIRATION DATE. March 15, 1989.

Issued at Washington, D.C.:


Alan I. Roberts
Director
Office of Hazardous Materials Transportation

APR -1 1988

(DATE)

Address all inquiries to: Director, Office of Hazardous Materials Transportation, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C. 20590. Attention: Exemptions Branch.

Dist: FAA